

		5:24-6:10, and FN 3.) This argument fails. Even if moving party is correct that the representation regarding future events is insufficient, which is not apparent from the face of the pleading, the Cross-complaint alleges that both representations are false (§§ 29, 31), which allegation the court must accept as true. (<i>Del E. Webb Corp. v. Structural Materials Co.</i> (1981) 123 Cal.App.3d 593, 604 [for purposes of demurrer, the allegations of the challenged pleading must be accepted as true].) Further, like the first cause of action, any timeliness defect is not “clearly and affirmatively” shown on the face of the Cross-complaint. (<i>Geneva Towers Ltd. Partnership v. City of San Francisco, supra</i> at 781.) <u>3rd cause of action: false promise.</u> This cause of action states sufficient facts. (CACI 1902 [elements]; Cross-complaint, §§ 17-19, 36, 37 [false promises in Subscription Agreement], 38, 39 [scienter], 41 [lack of awareness, reliance], 42 [proximately caused damages].) Moving party’s arguments as to this cause of action fail for the same reasons as discussed above. The case management conference is continued to October 12, 2026 at 9:00 a.m. in Department C28. Cross-complainant shall give notice of this ruling.
55.	Berentis v. Seybert 2024-01430186	Attorney Arthur Petrousian’s motion to be relieved as attorney of record for plaintiff Jayson Berentis is GRANTED. The order shall become effective upon the filing of the proof of service of the executed order. Moving counsel Petrousian shall give notice of this ruling.
56.	Njeri v. Tesla, Inc. 2025-01491391	Defendant Tesla, Inc.’s motion to compel arbitration is GRANTED. (See Code Civ. Proc., § 1281.2.) Plaintiff Irene Njeri is ORDERED to arbitrate her claims against defendant in accordance with the terms of the arbitration provision in the parties’ Motor Vehicle Order Agreement (MVOA). (See Kim Decl. at Ex. 1 [MVOA]; Sanders Decl. at Ex. 1 [same].) Defendant has met its burden to demonstrate the existence of an agreement to arbitrate the controversy. (See <i>Ramirez v. Golden Queen Mining Co., LLC</i> (2024) 102 Cal.App.5th 821, 830-832 [three-step burden shifting process]; <i>Iyere v. Wise Auto Group</i> (2023) 87 Cal.App.5th 747, 755 [same]; see also Kim Decl. §§ 2-7, Ex. 1 [MVOA].) Plaintiff has not challenged